



Department of Regulatory Agencies

State Board of Veterinary Medicine

VETERINARIAN AND VETERINARY TECHNICIAN RULES AND REGULATIONS

4 CCR 727-1

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.1 AUTHORITY

These regulations are adopted pursuant to the authority in sections 12-20-204 and 12-315-106(5)(g), C.R.S., and are intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 *et seq.* (the "APA"), C.R.S., and the Veterinary Practice Act, sections 12-315-101 *et seq.* (the "Practice Act"), C.R.S.

1.2 SCOPE AND PURPOSE

These regulations shall govern the process to become a Colorado licensed veterinarian, or a Colorado registered veterinary technician, a Colorado registered veterinary technician specialist, or a Colorado registered veterinary professional associate, and the practice of veterinary medicine in Colorado.

1.3 APPLICABILITY

The provisions of this section shall be applicable to the practice of veterinary medicine in Colorado that includes veterinarians, veterinary technicians, and veterinary technician specialists.

1.4 DEFINITIONS

This Rule is promulgated pursuant to sections 12-20-204, 12-315-106(5)(g), and 12-315-104, 12-315-105.5(4), 12-315-105.5(5)(a), 12-315-106(9)(a) and 12-315-119(3)(c), C.R.S., and any defined terms therein are applicable here. In addition to the definitions found in section 12-315-104, C.R.S., the following apply:

- A. A "veterinarian-client-patient relationship (VCPR)," as defined in sections 12-315-104(19) and 12-315-302, C.R.S., means a relationship established when:
 - 1. The veterinarian has assumed the responsibility for making medical judgments regarding the health of an animal and the need for medical treatment, and the owner or other caretaker has agreed to follow the instruction of the veterinarian;
 - 2. There is sufficient knowledge of an animal by the veterinarian to initiate at least a general or preliminary diagnosis of the medical condition of the

animal, which means that the veterinarian has recently seen and is personally acquainted with the keeping and care of the animal by virtue of an in-person physical examination of the animal or by medically appropriate and timely visits to the premises where the animal is kept;

3. The practicing veterinarian is readily available, or has arranged for emergency coverage, for follow-up evaluation in the event of adverse reactions or failure of the treatment regimen; and
4. A “veterinarian-client-patient relationship (VCPR)” may extend to other veterinarians working out of the same physical practice location as the veterinarian who established the VCPR relationship if the other license veterinarians have access to and have reviewed the patients’ medical records pursuant to 12-315-104(19)(b).

B. “Practice of Veterinary Medicine” as defined in section 12-315-104(14), C.R.S.

1.5 DENTISTRY

“Dentistry,” pursuant to section 12-315-104(20), C.R.S., is considered the practice of veterinary medicine.

- A. Dentistry means the diagnosing, treating, correcting, changing, relieving, or preventing abnormalities of the oral cavity or associated structures, including surgical, non-surgical, or related procedures, and includes:
1. The application or use of any instrument or device to any portion of an animal’s tooth, gum, or any related tissue for the prevention, cure, or relief of any wound, fracture, injury, or disease of an animal’s tooth, gum, or related tissue; and
 2. Preventive dental procedures including, but not limited to the removal of calculus, soft deposits, plaque, stains, or the smoothing, filing, or polishing of tooth surfaces.
 3. Dentistry does not include teeth cleaning or preventive dental procedures that are limited to the utilization of cotton swabs, gauze, dental floss, dentifrice, or toothbrushes on an animal’s teeth.
- B. The practice of dentistry requires:
1. Establishing and maintaining a veterinarian-client-patient relationship (VCPR), as defined in section 12-315-104(19) and 12-315-302, C.R.S.;
 2. Creating and maintaining an animal patient record pursuant to section 12-315-119(3)(b), C.R.S.; and

3. Documenting that informed consent from the owner, agent, or party responsible for the patient was obtained. If anesthesia-free dentistry/dental cleaning is being considered as a dental treatment option, then its limited efficacy in addressing periodontal disease as compared to preventive and therapeutic dental procedures completed under the utilization of general anesthesia must be thoroughly discussed with the owner, agent, or party responsible for the patient as part of obtaining and documenting informed consent.
- C. The practice of dentistry, excluding making a diagnosis and performing surgical procedures, may be delegated to veterinary technicians, veterinary technician specialists and other qualified veterinary personnel under the appropriate level of supervision of a licensed veterinarian pursuant to section 12-315-105(1)(j), 12-315-104(5.5), 12-315-105.5(4)(b)(I), C.R.S., and as described in Rule 1.7(C)(1)
1. Direct supervision by a licensed veterinarian is required for the practice of “teeth floating” or “floating of teeth” with motorized high-speed tools, and sedation must be provided by a licensed veterinarian as part of the procedure.
 2. Indirect supervision of “teeth floating” or “floating of teeth” using hand tools, may occur under the indirect supervision of a licensed veterinarian. The use of an oral sedative prescribed by a licensed veterinarian to the owner is permitted.

1.6 SUPERVISION

This rule is promulgated pursuant to sections 12-315-104(5.5), 12-315-104(6), 12-315-104(10), 12-315-104(10.5), 12-315-104(16.3), 12-315-104(16.5), 12-315-105, 12-315-105(1)(r), 12-315-105(1)(s), 12-315-105(1)(t), 12-315-209, and 12-315-116.

- A. Supervision means a licensed veterinarian's oversight and monitoring of another individual's assistance in the treatment of animals as part of the veterinarian's practice of veterinary medicine as defined in 12-315-104(16.5).
1. Only a licensed veterinarian in Colorado may diagnose, prognose, prescribe or perform surgery.
 - a. These duties may be delegated to a veterinary student, veterinary student preceptor, with the exception of prescribing, in compliance with section 12-315-116, C.R.S.
- B. There are specific levels of supervision:
1. “Immediate supervision,” as defined in 12-315-104(10), C.R.S., means the supervising licensed veterinarian is physically in the immediate area on the premises and within audible or visual range of the patient and the

individual performing the tasks that have been delegated by the licensed veterinarian.

2. "Direct supervision," as defined in 12-315-104(6), C.R.S., means the supervising licensed veterinarian is readily available on the premises where the patient is being treated and is able to supervise the tasks that have been delegated to an individual.
3. "Indirect supervision," as defined in 12-315-104(10.5), C.R.S., means the supervising licensed veterinarian need not be on the veterinary premises but provides either written or verbal instructions for the tasks that have been delegated to an individual and is readily available for communication.
4. In a life-threatening emergency, the supervising licensed veterinarian may provide verbal instructions necessary for stabilizing the patient prior to examining the patient provided the supervising licensed veterinarian subsequently and timely examines the patient and documents the instruction provided in the patient's record.

1.7 DELEGATION

This Rule is promulgated pursuant to sections 12-315-105, 12-315-105.5, and 12-315-201(1)(d), C.R.S.

A. Definitions and Purpose of Delegation

1. Definitions
 - a. Delegation is defined as a licensed veterinarian's act of entrusting to an individual the authority to perform a task under the appropriate level of supervision by the licensed veterinarian after the licensed veterinarian has determined that the individual is competent to perform the task pursuant to 12-315-104(5.5).
 - b. Scope of competence is the delineation of boundaries within which a veterinary professional may practice safely, ethically, and effectively. It includes educational foundations, comprehensive training with clinical experience, competency, required level of licensure or registration, and legal and regulatory boundaries as referenced in 12-315-112(1)(aa) and 12-315-207(1)(n), C.R.S.

2. Purpose

The definitions of delegation, supervision, and delegable tasks address and utilize the full potential of veterinary professionals and are the foundation for a responsive, accessible, and efficient veterinary care system.

B. Delegation Framework

1. Authority to Delegate: Section 12-315-105.5. C.R.S. provides a licensed veterinarian the authority to delegate specific veterinary medical tasks to qualified personnel, including the following:
 - a. Veterinary Technician Specialists (VTS)
 - b. Registered Veterinary Technicians (RVT or VT)
 - c. Other qualified personnel
 - (1) Other qualified personnel is an individual who is not a veterinary technician or veterinary technician specialist pursuant to 12-315-105.5(7), C.R.S.
2. Prerequisites for Delegation
 - a. A veterinarian may delegate as task only under the following conditions:
 - (1) A VCPR has been established by the licensed veterinarian.
 - (2) The task falls within the veterinarian's scope of practice
 - (3) The veterinarian has considered the scope of competence of the individual who will be performing the task.
 - (4) The delegated task does not require independent veterinarian clinical judgment
 - (5) The veterinarian provides appropriate supervision as defined in 12-315-104
 - b. A VTS or RVT may delegate a task under the following conditions:
 - (1) The task has been delegated by a veterinarian.
 - (2) The scope of competence of the individual who will perform the task has been considered.
 - (3) The task does not require the specific nursing or clinical judgment of the VTS or RVT.
3. Accepting Delegated Tasks
 - a. Any individual accepting the task must do the following:
 - (1) Ensure the task is within their scope of competence.

- (2) Seek clarification or training if the task is unclear or beyond their expertise.
 - (3) Decline delegation if the task exceeds their legal or professional capabilities.
 - (4) Adhere to supervision requirements and report concerns to the delegating veterinarian.
 - b. VTSs, RVTs, and other qualified personnel shall not accept delegation of tasks that require a veterinarian's direct clinical judgment or are tasks that are legally restricted to a veterinarian or other veterinary professional
 - c. A veterinary professional shall not delegate veterinary medical tasks that require their specific clinical judgment and expertise.
- 4. Restrictions on Delegation: The following tasks cannot be delegated to VTS, RVT, or other qualified personnel:
 - a. Diagnosing, prognosing, prescribing, and performing surgery.
 - b. Tasks legally restricted to licensed veterinarians by state or federal laws or regulations.
 - c. Any task that, in the veterinarian's judgment, requires their direct involvement to ensure patient safety.
- 5. Responsibilities of the Delegating Veterinarian
 - a. The veterinarian retains ultimate responsibility for the care and outcomes of delegated tasks.
 - b. The veterinarian must ensure the VTS, RVT, or other qualified personnel understands and follows all relevant laws and regulations.
 - c. If delegation results in patient harm due to inadequate supervision, the veterinarian may be subject to disciplinary action pursuant to section 12-315-112(1)(ee).
- C. Delegation and Minimum Levels of Supervision
 - 1. A licensed veterinarian may delegate tasks that are not restricted to licensed veterinarians to a veterinary technician or veterinary technician specialist under specific levels of supervision, when the conditions in section 12-315-105.5(1)-(3), C.R.S. are met.

2. A licensed veterinarian may delegate tasks at their sole discretion and may choose to delegate tasks at a level of increased supervision. A licensed veterinarian may not delegate tasks at a level of reduced supervision than is allowed in statute and rule.
3. Various tasks that a veterinarian may choose to delegate under immediate, direct, and indirect supervision are summarized below and a table is provided. Tasks that are not listed below may be delegated at an appropriate level of supervision as determined by the licensed veterinarian.
 - a. Immediate Supervision: The following tasks may be delegated under immediate supervision pursuant to Section 12-315-105.5(4)(a), C.R.S. and at the discretion of the licensed supervising veterinarian.
 - (1) Assisting in surgical procedures
 - (2) The placement of abdominal, thoracic, esophagostomy, or percutaneous endoscopic gastrostomy tubes
 - b. Direct Supervision: The following tasks may be delegated under a minimum of direct supervision pursuant to Section 12-315-105.5(4)(b), C.R.S. and at the discretion of the licensed supervising veterinarian.
 - (1) Dental procedures, including, at a minimum:
 - 1) Removing calculus, soft deposits, plaque and stains
 - 2) Smoothing, filing and polishing teeth
 - 3) Single root extractions that do not require sectioning of the tooth or sectioning of the bone
 - 4) Suturing a gingival incision.
 - (2) Placement of epidural and intraosseous catheters
 - (3) Suturing, stapling, or gluing an existing surgical skin incision
 - (4) Treatment of minor medical conditions, as determined by the licensed veterinarian, if:
 - 1) The veterinary technician or veterinary technician specialist has the training and competency to perform the treatment;

- 2) The treatment is performed in consultation with the licensed veterinarian or under previously established written protocols; and
 - 3) The licensed veterinarian is available to manage the case if it is determined that the condition of the patient requires care beyond the abilities of the veterinary technician or veterinary technician specialist.
 - 4) The minor medical condition is a low risk, non-life-threatening, and well characterized condition that can be managed with predictable outcomes. It does not include surgical procedures.
- c. Indirect Supervision: The following tasks may be delegated under a minimum of indirect supervision pursuant to Section 12-315-105.5(4)(c), C.R.S. and at the discretion of the licensed supervising veterinarian.
- (1) Unless prohibited by state or federal law, the administration and application of treatments, including:
 - 1) Prescription drugs
 - 2) Medications
 - 3) Controlled substances
 - 4) Enemas
 - 5) Biological immunological agents
 - (2) Intravenous and intra-arterial catheterizations and maintenance
 - (3) Imaging, including radiography, ultrasonography, computed tomography, magnetic resonance imaging, and fluoroscopy and the administration of radiopaque agents or materials
 - (4) Unless prohibited by state or federal law, the collection of:
 - 1) Blood
 - 2) Cellular or microbiological samples through skin scrapings, impressions, or other nonsurgical methods

- 3) Urine through bladder expression, unobstructed catheterization, cystocentesis, or insertion of an indwelling urinary catheter
- (5) Monitoring of:
 - 1) An electrocardiogram
 - 2) Blood pressure
 - 3) Carbon Dioxide and blood oxygen saturation
- (6) Clinical laboratory test procedures
- (7) Handling and disposing of biohazardous waste materials
- (8) Implantation of a subcutaneous microchip
- (9) Administration of a therapeutic laser, except for the use of surgical lasers
- (10) Application of animal rehabilitation therapies
- (11) Ocular tonometry, Schirmer tear tests, or fluorescein stain application
- (12) Suture and staple removal
- (13) Application of splints and slings for the temporary immobilization of fractures
- (14) Administration of chemotherapy or radiation therapy
- (15) Reproductive ultrasound and semen evaluation
- (16) Blood or blood component collection, preparation, and administration for transfusion or blood banking purposes
- (17) Placement of gastric, nasogastric, or nasoesophageal tubes
- (18) Fluid aspiration from a body cavity or organ
- (19) Minor wound management
- (20) Placement of nasal catheters
- (21) Emergency patient care, such as:

- 1) Application of tourniquets or pressure procedures to control hemorrhage
 - 2) Application of appropriate wound dressings
 - 3) Resuscitative oxygen procedures
 - 4) Anti-seizure treatment
 - 5) Supportive treatment in heat prostration cases
 - 6) Administration of a drug, a controlled substance, or parenteral fluids to manage and control pain, prevent further injury, prevent or control shock, or prevent the suffering of an animal, up to and including euthanasia
 - 7) Initiation and performance of cardiopulmonary resuscitation, or "CPR", including administration of medication and defibrillation, and immediate post-resuscitation care.
4. Veterinary Technician Specialist Delegation: Pursuant to section 12-315-105.5(6), C.R.S., a licensed veterinarian may delegate any task not restricted to licensed veterinarians to a registered veterinary technician specialist under a minimum of indirect supervision, including tasks listed in sections 12-315-105.5(4)(a) and (b).
 5. Other qualified personnel delegation: Pursuant to section 12-315-105.5(7), C.R.S., a licensed veterinarian may delegate a task to an individual who is not a veterinary technician specialist or a veterinary technician under direct or immediate supervision if the veterinarian determines the task is within the individual's scope of competence.
 - a. Delegation of the treatment of minor medical conditions, as determined by the licensed supervising veterinarian, to an individual who is not a veterinary technician or veterinary technician specialist is prohibited.
 6. Animal Shelters: An individual may perform tasks under at least indirect supervision of a licensed veterinarian if the animal is located at an animal shelter and is the property or under the stewardship of an animal shelter if the requirements in 12-315-105(1)(r)(I) and (II) are met.

7. Livestock: An individual may perform tasks under the supervision of a licensed veterinarian if the following conditions are met, pursuant to 12-315-105(t)(I) and (II), C.R.S.:
 - a. The supervising licensed veterinarian has established a veterinarian-client-patient relationship with the livestock and the owner of the livestock;
 - b. The individual is performing tasks in compliance with written or verbal instructions or communications developed by the supervising licensed veterinarian; and
 - c. The supervising licensed veterinarian has determined the individual performing the tasks has received sufficient and proper training.
8. Delegation of rabies vaccinations:
 - a. A licensed veterinarian may delegate the administration of rabies vaccinations under the following circumstances, pursuant to 12-315-105(q), C.R.S.:
 - (a) If the person is under the direct supervision of a licensed veterinarian and has been trained in rabies vaccine storage, handling, and administration and in the management of adverse events;
 - (b) If the person is under indirect supervision of a licensed veterinarian and working on behalf of an animal shelter and has been trained in rabies vaccine storage, handling, and administration and in the management of adverse events.
 - b. The veterinarian signing the rabies vaccination certificate shall ensure that the person who administered the vaccine is identified on the certificate.

1.8 VETERINARIAN LICENSURE REQUIREMENTS

This Rule is promulgated pursuant to sections 12-20-202, 12-20-203, 12-20-204, 12-20-404, 12-315-106(5)(g), 12-315-107, 12-315-108, 12-315-109, 12-315-110, 12-315-111, and 12-315-114, C.R.S.

A. Licensure by Examination

1. All documents required as part of a licensure application, except for license renewal, must be received by the Board within one year of the date of receipt of application. An application is incomplete until the Board

receives all additional information requested or required in order to determine whether to grant or deny the application. If all required information is not submitted within the one year period, then the original application materials will be destroyed and the applicant will be required to submit a new application, fee, and all required documentation. The only exception to this are examination results; they will be maintained for an additional one year if the application is not completed within one year of receipt of the application before they are also destroyed if a new application is not filed before that time.

2. Each applicant shall submit a completed Board approved application along with the required fee in order to be considered for licensure approval and must also verify that the applicant:
 - a. Graduated from a school or college of veterinary medicine accredited by the American Veterinary Medical Association (AVMA). The applicant must submit official documentation bearing the seal of the institution in the form of one of the following:
 - (1) A final official transcript showing proof of degree or
 - (2) A letter from the Dean of the School/College of Veterinary Medicine or the College/University Registrar stating that the applicant has been awarded the degree Doctor of Veterinary Medicine.
 - b. Graduated from a non-approved school or college of veterinary medicine. The applicant must submit official certificate of completion from one of the following programs in lieu of school transcripts:
 - (1) Educational Commission for Foreign Veterinary Graduates (ECFVG) or
 - (2) Program for the Assessment of Veterinary Educational Equivalence (PAVE).
 - c. Successfully completed the North American Veterinary Licensing Examination (NAVLE) administered by the International Council for Veterinary Assessment (ICVA) after November of 2000.
3. Each applicant will also be required to verify that the applicant:
 - a. Accurately and completely list any acts that would be grounds for disciplinary action under the Practice Act and provide a written explanation of the circumstances of such act, including supporting documentation if required.

- b. Accurately and completely provide any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously licensed.
- c. Demonstrates current clinical competency and professional ability through at least one of the following:
 - (1) Graduated within the twelve months immediately preceding the date the application is received with a DVM degree from a school or college of veterinary medicine, which at the time of the applicant's graduation was accredited by the AVMA;
 - (2) Earned a certificate from either ECFVG or PAVE within the twelve months immediately preceding the date the application is received;
 - (3) Engaged in the active licensed clinical practice of veterinary medicine in this or another jurisdiction for at least three years of the five years immediately preceding the date the application is received (experience from postgraduate training, residency programs, internships, or research during this time will be evaluated on a case-by-case basis);
 - (4) Engaged in teaching veterinary medicine in an AVMA accredited program for at least three years of the five years immediately preceding the date the application is received;
 - (5) Engaged in service as a veterinarian in the military for at least three years of the five years immediately preceding the date the application is received;
 - (6) Passed the NAVLE within one year of the date the application is received; or
 - (7) Successfully completed a Board approved evaluation by an AVMA accredited institution within one year of the date the application is received, which certifies the applicant's proficiency as equivalent to the current school graduate. An applicant must submit a proposed evaluation for pre-approval by the Board before it is begun. The Board may reject an evaluation for which a proposal has not been pre-approved or for other good cause.
- d. The Board may also consider applying one or more of the following towards demonstration of current clinical competency:

- (1) Practice under a probationary or otherwise restricted license for a specified period of time;
- (2) Successful completion of courses approved by the Board; or
- (3) Any other professional standard or measure of continued competency as determined by the Board, including successful completion of species- specific examination(s).

B. Licensure by Endorsement

1. In order to be eligible for licensure by endorsement, an applicant must certify that the applicant does not currently possess a revoked, suspended, restricted, or conditional license to practice veterinary medicine, or is currently not pending disciplinary action against such license, in another state or territory of the United States, or through the federal government.
2. Each eligible applicant shall submit a completed Board approved application along with the required fee in order to be considered for licensure approval and must also verify through the state in which, or federal agency through which, he or she is seeking endorsement from that the applicant meets the requirements listed under Rule 1.8(A)(2).
3. The requirements in Rule 1.8(A)(3) apply for purposes of this Rule.

C. Academic License

1. A veterinarian who is employed at an AVMA accredited school of veterinary medicine in this state and who practices veterinary medicine in the course of his or her employment responsibilities and is applying for an academic license shall submit with the application and fee the following credentials and qualifications for review and approval by the Board:
 - a. Proof of graduation with a degree from a school of veterinary medicine located in the United States or another country.
 - b. Evidence of the applicant's employment by an accredited school of veterinary medicine in this state; actual practice is to commence only once licensure has been granted.
 - c. The requirements in Rule 1.8(A)(2) apply.
2. An academic license shall authorize the licensee to practice veterinary medicine only while engaged in the performance of his or her official duties as a university employee in Colorado. An academic licensee may not use an academic license to practice veterinary medicine outside of his or her academic responsibilities.

D. Education, Training, or Service Gained During Military Service and Military Spouses

1. Education, training, or service gained in military services outlined in section 12-20-202(4), C.R.S., to be accepted and applied towards receiving a license, must be substantially equivalent, as determined by the Board, to the qualifications otherwise applicable at the time of receipt of application. It is the applicant's responsibility to provide timely and complete evidence for review and consideration. Satisfactory evidence of such education, training, or service will be assessed on a case by case basis.
2. Regulation of Military Spouses.
 - a. Pursuant to section 12-20-202(3)(f), C.R.S., a military spouse duly licensed in good standing in another state or United States territory to practice veterinary medicine may, upon application to the Division, obtain a temporary license to practice veterinary medicine upon submission of satisfactory proof, under penalty of perjury, of the military spouse's active license in another state or United States territory in good standing, and that the applicant has not committed an act that would be grounds for disciplinary action under the veterinary practice act, Article 315 of Title 12, C.R.S.
 - b. For the purposes of this Rule
 - (1) "In good standing" means that a license has not been revoked, expired, or suspended, and against which there are no outstanding disciplinary or adverse actions.
 - (2) "Military spouse" means the spouse of a person who is actively serving in the United State armed forces and who is stationed in Colorado in accordance with military orders.
 - c. A temporary license issued to a military spouse is valid for three years after the date of issuance and may not be renewed.
 - d. The Board hereby waives the application fee for temporary licenses issued.

E. Inactive Status and Reactivation of a License

1. Pursuant to section 12-20-203, C.R.S., a veterinarian may apply to the Board to inactivate their license. The holder of an inactive license shall not be required to comply with the continuing education requirements for renewal during the time the license is inactive.

- a. If a veterinarian's license is inactive, the veterinarian shall not perform acts restricted to active licensed veterinarians in Colorado pursuant to section 12-20203(3), C.R.S. The Board shall retain jurisdiction over inactive veterinarians for the purposes of disciplinary action pursuant to section 12-315-112(1)(w), C.R.S.
 - b. Practicing veterinary medicine with an inactive license shall constitute unlicensed practice and, therefore, may be grounds for disciplinary or injunctive action, up to and including revocation.
 - c. Licensed veterinarians with inactive licenses are required to renew their license every two years and submit the applicable fee.
 - d. A licensed veterinarian with an academic license is not eligible for inactive status.
2. To be considered for licensure reactivation, an applicant must submit a completed reactivation application form and the reactivation fee.
3. Each applicant for reactivation shall certify the following:
 - a. Every license to practice veterinary medicine held by applicant is in good standing;
 - b. Applicant has reported to the Board any injunction or disciplinary action completed or pending against the applicant's license to practice veterinary medicine in any state;
 - c. Applicant has reported to the Board any malpractice judgment, any settlement of a malpractice action or claim, and any malpractice action or claim pending against the applicant in which the malpractice allegedly relates to the applicant's practice of veterinary medicine;
 - d. Applicant has reported to the Board any inquiry/complaint pending, investigation being conducted by, or disciplinary proceeding pending before the licensing, grievance, or disciplinary board of any jurisdiction in which the applicant is licensed to practice veterinary medicine in which the complaint, investigation, or proceeding concerns the applicant's practice of veterinary medicine.
4. The Board may decline to reactivate a license if disciplinary action is pending or if there is an unresolved complaint.
5. If the license has been inactive for less than two years, then the applicant is required to submit proof of fulfilling the requirements of Rule 1.8(I) for the two-year period in which his or her license was last active as well as the two-year period in which the license was expired or inactive.

6. If the license has been inactive for two or more years, then the requirements in Rule 1.8(A)(3)(c) apply.
7. All applicants for reactivation are required to fulfill the substance use prevention training requirements..

F. Reinstatement Requirements for Expired Licenses

1. In order to reinstate or reactivate a license back into active status, each applicant shall submit a completed Board approved application along with the required fee in order to be considered for licensure approval and must also verify that the applicant:
 - a. Accurately and completely lists any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provides a written explanation of the circumstances of such act, including supporting documentation, if required, since last renewing their license to an active status in this state.
 - b. Accurately and completely provides any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously licensed since last renewing his or her license to an active in this state.
2. If the license has been expired for less than two years, then the applicant is required to submit proof of fulfilling the continuing education requirements for the two-year period in which the applicant's license was last active as well as the two-year period in which the license was expired or inactive.
3. If the license has been expired for more than two years, then the requirements in Rule 1.8(A)(3)(c) apply.
4. All applicants for reinstatement are required to fulfill the substance use prevention training requirements.

G. Revocation

This Rule is promulgated pursuant to sections 12-20-204, 12-315-106(5)(g), and 12-20-404(3), C.R.S.

Any person whose license to practice is revoked will be ineligible to apply for any license under the Veterinary Practice Act for at least two years after the date of revocation or surrender of the license. Any subsequent application for licensure shall be treated as an application for an original license.

H. Renewal

A licensed veterinarian is required to renew their license biennially and submit the applicable fee.

I. Continuing Education

1. Each licensed veterinarian or academic veterinarian with an active license in Colorado is required to attend thirty-two hours of educational study per renewal period as set forth in section 12-315-110(3), C.R.S. Continuing education hours may only be applied to one renewal period. This requirement is not applicable to a licensed veterinarian renewing an inactive license. Continuing education hours must include:
 - a. Two hours of jurisprudence on the Colorado Veterinary Practice Act.
 - b. At least one hour in Substance Use Prevention Training covering specific topics. (see Rule 1.8(J))
 - c. Two hours of supervision training that includes delegation of tasks to veterinary technicians, veterinary technician specialists, veterinary professional associates and other qualified personnel.
2. If a renewal date occurs during the year of original Colorado licensure, continuing education will not be required for the first renewal. If the renewal date occurs the year after original licensure, the licensee shall obtain sixteen hours of continuing education prior to the biennial renewal.
3. The Board automatically accepts any course approved by the Registry of Approved Continuing Education (RACE). The Board reserves the right to determine the approval of any other meetings, programs, or courses for continuing education credit.
4. The Board may accept up to sixteen hours of continuing education credit per licensing period for non-biomedical topics including, but not limited to, leadership training, personnel management, client relations, communication training, and practice and personal wellness.
 - a. No presentation that is primarily promotional in nature regardless of subject material will be acceptable.
5. All licensed veterinarians are required to fulfill the substance use prevention training requirements of Rule 1.8(J). Subject to the approval of the Board, completed substance use prevention training hours that also meet the requirements for continuing education in this Rule may be applied towards the minimum continuing education hours required.

J. Substance Use Prevention Training for License Renewal, Reactivation, or Reinstatement

1. Pursuant to section 12-30-114, C.R.S., every veterinarian, including every academic veterinarian, is required to complete at least one hour of training per renewal period in order to demonstrate competency regarding the topics/areas specified in section 12-30-114(1)(a), C.R.S.
2. Training for the purpose of this section includes, but is not limited to, relevant and verifiable continuing education courses, conferences, or presentations, and distance learning. All such training must cover or be related to the topics specified in section 12-30-114(1)(a), C.R.S., and be in accordance with Rule 1.8(I).
3. A veterinarian is statutorily exempt from the requirements of this section if the veterinarian qualifies for either exemption set forth in section 12-30-114(1)(b), C.R.S.
4. This section shall apply to any applicant for reinstatement or reactivation of an expired or inactive license..
5. Applicants for license renewal, reactivation, or reinstatement shall attest during the application process to either their compliance with this substance use training requirement or their qualifying for an exemption.
6. The Board may audit compliance with this section. Veterinarians should be prepared to submit documentation of their compliance with this substance use training requirement or their qualification for an exemption, upon request by the Board.
7. Subject to the approval of the Board, completed substance use prevention training hours that also meet the requirements for continuing education may be applied towards the minimum continuing education hours required.
8. The statutorily required training for veterinarians includes the following topics/areas: best practices for veterinary opioid prescribing; recognition of human substance use disorder; use of the electronic prescription drug-monitoring program; and referral of human beings with suspected substance use disorders for treatment.

To the extent the statutorily required training pertains to the practice of human medicine, this training does not authorize veterinary medicine practitioners to engage in the practice of human medicine nor does it require the veterinary medicine practitioner to refer human beings to treatment for suspected substance abuse disorders.

(Eff. 9/30/2007; Eff. 1/30/2008; Amended and Re-numbered November 3, 2011, Effective December 30, 2011; Amended August 1, 2013, Effective September 30, 2013)

1.9 VETERINARY TECHNICIAN REGISTRATION AND VETERINARY TECHNICIAN SPECIALIST DESIGNATION REQUIREMENTS

This Rule is promulgated pursuant to sections 12-20-202, 12-20-203, 12-20-204, 12-20-404, 12-315-201, 12-315-202, 12-315-203(4), and 12-315-207, C.R.S.

A. Registration by Examination

1. All documents required as part of a registration application, except for registration renewal, must be received by the Board within one year of the date of receipt of application. An application is incomplete until the Board receives all additional information requested or required in order to determine whether to grant or deny the application. If all required information is not submitted within the one year period, then the original application materials will be destroyed and the applicant will be required to submit a new application, fee, and all required documentation.
2. Each applicant shall submit a completed Board approved application along with the required fee in order to be considered for registration approval and must also verify that the applicant:
 - a. Holds a current credential from the Board-approved credentialing organization.
3. Each applicant will also be required to verify that the applicant:
 - a. Accurately and completely list any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provide a written explanation of the circumstances of such act, including supporting documentation if required.
 - b. Accurately and completely provide any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously credentialed.

B. Registration by Completion of Provisional Requirements

1. If an applicant meets the requirements pursuant to section 12-315-203(4)(c), C.R.S., on or before December 31, 2027, the applicant may apply for credentialing directly with the Board approved credentialing organization. Once credentialed, the applicant may submit a completed Board-approved application, the required fee for registration approval, and verification that the applicant holds a current credential from the Board-approved credentialing organization.

2. Between January 1, 2023, and January 1, 2028, individuals holding a provisional registration may pursue registration as a veterinary technician as described below:
 - a. Each applicant with a provisional registration shall submit a completed Board approved application along with the required fee in order to be considered for registration approval and shall verify that the applicant holds a current credential from the Board-approved credentialing organization.
3. An applicant may submit a request to the Board for a hardship extension for its consideration to extend the provisional registration expiration date to a date no later than June 30, 2028.
4. Registration by Completion of Provisional Requirements is repealed as of October 1, 2028, as specified in section 12-315-203(4)(f), C.R.S.

C. Veterinary Technician Specialist Designation

1. On or after January 1, 2026, a Registered Veterinary Technician may pursue a Veterinary Technician Specialist designation.
2. Each applicant shall submit a completed Board approved application in order to be considered for designation approval and must also verify that the applicant:
 - a. Holds a current certificate from the Board-approved liaison organization that verifies the applicant has met the requirements and passed the exam for a specific academy under the National Association of Veterinary Technicians in America or its successor.
3. Each applicant will also be required to verify that the applicant:
 - a. Accurately and completely list any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provide a written explanation of the circumstances of such act, including supporting documentation if required.
 - b. Accurately and completely provide any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously credentialed.

D. Reinstatement Requirements for Expired Provisional Registration

1. In order to reinstate a provisional registration back into active status, each applicant shall submit a completed Board approved application along with the required registration fee and proof of current employment in the role or

performing the duties of a veterinary technician in order to be considered for provisional registration reinstatement approval. Each applicant must also verify that the applicant:

- a. Accurately and completely lists any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provides a written explanation of the circumstances of such act, including supporting documentation, if required, since registering or last renewing their provisional registration to an active status in this state.
2. A provisional veterinary technician registration may not be reinstated after 10/31/2026.

E. Registration by Endorsement

1. In order to be eligible for registration by endorsement, an applicant must certify that the applicant does not currently possess a revoked, suspended, restricted, or conditional credential to practice as a veterinary technician or veterinary technician specialist, or is not currently pending disciplinary action against such credential, in another state or territory of the United States or through the federal government.
2. Each eligible applicant shall submit a completed Board approved application along with the required fee in order to be considered for registration approval and verify through the state in which, or federal agency through which, the applicant is seeking endorsement that the applicant satisfies the requirements of the Occupational Credential Portability Program, in addition to the following requirements:
 - a. The applicant must possess a current, active and unrestricted license in good standing and engaged in active practice in another jurisdiction for at least one (1) year immediately preceding the date the application is received.
 - b. The applicant holds a Colorado Association of Certified Veterinary Technician (CACVT) credential that confirms the applicant graduated from an AVMA accredited program for veterinary technicians and the applicant has passed the national examination administered by the nationally and Board recognized testing entity for veterinary technicians.
 - c. The requirements of this Rule shall apply only to applications for registration by endorsement submitted on or after February 12, 2026. Individuals who were granted registration by endorsement prior to this date shall not be subject to the requirements of this Rule for purposes of maintaining registration or credentialing.

F. Inactive Status and Reactivation of a Registration

1. A veterinary technician or a veterinary technician specialist may apply to the Board to inactivate their registration and/or designation.
 - a. If a veterinary technician registration or veterinary technician specialist designation is inactive, the veterinary technician or veterinary technician specialist shall not perform acts restricted to active registered veterinary technicians or veterinary technician specialists in Colorado pursuant to section 12-20-203(3), C.R.S., or use the title “veterinary technician”, or “registered veterinary technician” or the initials “RVT” or “VT” or “veterinary technician specialist” or “registered veterinary technician specialist” or the initials “VTS” or “RVTS” as restricted in section 12-315-204, C.R.S. The Board shall retain jurisdiction over inactive veterinary technicians and veterinary technician specialists for the purposes of disciplinary action pursuant to section 12-315-207, C.R.S.
 - b. Practicing as a veterinary technician with an inactive registration or veterinary technician specialist with an inactive designation shall constitute unregistered practice and, therefore, may be grounds for disciplinary or injunctive action, up to and including revocation.
 - c. Registered veterinary technicians with inactive registrations are required to renew their registration every two years and submit the applicable fee. A veterinary technician designation may be renewed at the same time.
 - d. To be considered for registration and/or designation reactivation, an applicant must submit a completed reactivation application form and the reactivation fee. Each applicant for reactivation shall certify the following:
 - (1) Every credential or registration to practice as a veterinary technician or veterinary technician specialist held by applicant is in good standing;
 - (2) Applicant has reported to the Board any injunction or disciplinary action completed or pending against the applicant’s credential or registration to practice as a veterinary technician in any state;
 - (3) Applicant has reported to the Board any malpractice judgment, any settlement of a malpractice action or claim, and any malpractice action or claim pending against the applicant in which the malpractice allegedly relates to the applicant’s practice as a veterinary technician or veterinary technician specialist;

- (4) Applicant has reported to the Board any inquiry/complaint pending, investigation being conducted by, or disciplinary proceeding pending before the licensing, grievance, or disciplinary board of any jurisdiction in which the applicant is registered or credentialed to practice as a veterinary technician or veterinary technician specialist in which the complaint, investigation, or proceeding concerns the applicant's practice.
 - e. The Board may decline to reactivate a registration, designation or both if disciplinary action is pending or if there is an unresolved complaint.
 - f. If the registration or credential has been inactive for less than two years, then the applicant is required to submit proof of fulfilling the requirements for the two-year period in which the individual's registration was last active as well as the two-year period in which the registration or credential was expired or inactive.
 - g. If the registration or credential has been inactive for two or more years, then the requirements in Rule 1.9(A)(2) apply.
- G. Reinstatement Requirements for Expired Registration, Designation or both
- 1. In order to reinstate or reactivate a registration, designation or both into active status, each applicant shall submit a completed Board approved application along with the required fee in order to be considered for approval and must also verify that the applicant:
 - a. Accurately and completely lists any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provides a written explanation of the circumstances of such act, including supporting documentation, if required, since last renewing their registration, designation, or both to an active status in this state.
 - b. Accurately and completely provides any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously credentialed since last renewing the individual's registration, designation, or both to an active registration in this state.
 - c. Holds a current credential from the Board-approved credentialing entity.
- H. Revocation
- 1. Any person whose registration to practice is revoked will be ineligible to apply for any registration under the Veterinary Practice Act for at least two years after the date of revocation or surrender of the registration. Any

subsequent application for registration shall be treated as an application for an original registration.

I. Renewal

1. A registered veterinary technician or a veterinary technician specialist is required to renew their registration every two years, submit the applicable fee, and provide proof of current credential from the Board approved credentialing organization.
2. A veterinary technician or a veterinary technician specialist's renewal fee will be waived while on active duty with any branch of the Armed Services of the United States pursuant to section 12-315-206(2), C.R.S.

1.10 VETERINARY PROFESSIONAL ASSOCIATE REGISTRATION REQUIREMENTS.

A. Registration by Examination documents required as part of a registration application, except for registration renewal, must be received by the Board within one year of the date of receipt of application. An application is incomplete until the Board receives all additional information requested or required in order to determine whether to grant or deny the application. If all required information is not submitted within the one-year period, then the original application materials will be destroyed and the applicant will be required to submit a new application, fee, and all required documentation.

1. Each applicant shall submit a completed Board approved application along with the required fee in order to be considered for registration approval and must also verify that the applicant:
 - a. Holds a current credential from the Board-approved VPA credentialing organization that verifies the applicant has met the educational requirements and passed the national examination by the AAVSB or its successor.

B. Inactive Status and Reactivation of a Registration

1. A veterinary professional associate may apply to the Board to inactivate their registration.
 - a. If a veterinary professional associate registration is inactive, the veterinary professional associate shall not perform acts restricted to active registered veterinary professional associates in Colorado pursuant to section 12-20-203.7, C.R.S., or use the title "veterinary professional associate" or the initials "VPA" as restricted in section 12-315-204, C.R.S. The Board shall retain jurisdiction over inactive veterinary professional associates for the purposes of disciplinary action pursuant to section 12-315-207, C.R.S.

- b. Practicing as a veterinary professional associate with an inactive registration shall constitute unregistered practice and, therefore, may be grounds for disciplinary or injunctive action, up to and including revocation.
- c. Registered veterinary professional associates with inactive registrations are required to renew their registration every two years and submit the applicable fee.
- d. To be considered for registration reactivation, an applicant must submit a completed reactivation application form and the reactivation fee. Each applicant for reactivation shall certify the following:
 - (1) Every credential or registration to practice as a veterinary professional associate held by applicant is in good standing;
 - (2) Applicant has reported to the Board any injunction or disciplinary action completed or pending against the applicant's credential or registration to practice as a veterinary professional in any state;
 - (3) Applicant has reported to the Board any malpractice judgment, any settlement of a malpractice action or claim, and any malpractice action or claim pending against the applicant in which the malpractice allegedly relates to the applicant's practice as a veterinary professional associate;
 - (4) Applicant has reported to the Board any inquiry/complaint pending, investigation being conducted by, or disciplinary proceeding pending before the licensing, grievance, or disciplinary board of any jurisdiction in which the applicant is registered or credentialed to practice as a veterinary professional associate in which the complaint, investigation, or proceeding concerns the applicant's practice.
- e. The Board may decline to reactivate a registration if disciplinary action is pending or if there is an unresolved complaint.
- f. If the registration or credential has been inactive for less than two years, then the applicant is required to submit proof of fulfilling the requirements for the two-year period in which the individual's registration was last active as well as the two-year period in which the registration or credential was expired or inactive.
- g. If the registration or credential has been inactive for two or more years, then the requirements in Rule 1.10(A) apply.

C. Reinstatement Requirements for Expired Registration

1. In order to reinstate or reactivate a registration back into active status, each applicant shall submit a completed Board approved application along with the required fee in order to be considered for registration approval and must also verify that the applicant:
 - a. Accurately and completely lists any acts that would be grounds for disciplinary action under the Veterinary Practice Act and provides a written explanation of the circumstances of such act, including supporting documentation, if required, since last renewing their registration to an active status in this state.
 - b. Accurately and completely provides any and all information pertaining to any final or pending disciplinary action by any state or jurisdiction in which the applicant is or has been previously credentialed since last renewing the individual's registration to an active registration in this state.
 - c. Holds a current credential from the Board-approved credentialing entity.

D. Revocation

1. Any person whose registration to practice is revoked will be ineligible to apply for any registration under the Veterinary Practice Act for at least two years after the date of revocation or surrender of the registration. Any subsequent application for registration shall be treated as an application for an original registration.

E. Renewal

1. A registered veterinary professional associate is required to renew their registration every two years and submit the applicable fee.
2. A veterinary professional associate's renewal fee will be waived while on active duty with any branch of the Armed Services of the United States pursuant to section 12-315-206(2), C.R.S.

F. Continuing Education

1. Each registered veterinary professional associate with an active license in Colorado is required to complete continuing education. Continuing education hours must include: 28 hours every two years with no more than four hours of non-medical continuing education, including two hours combined of jurisprudence and controlled substances education.

1.11 VETERINARY PROFESSIONAL REPORTING CHANGE OF ADDRESS, TELEPHONE NUMBER, OR NAME

This Rule is promulgated pursuant to sections 12-20-204 and 12-315-106(5)(g), C.R.S.

- A. A veterinary professional shall inform the Board in a clear, explicit, and unambiguous written statement of any name, address, or electronic mail address, change within thirty days of the change. The Board will not change the veterinary professional's information without explicit written notification from the veterinary professional. Notification by fax or email is acceptable.
- B. The Division of Professions and Occupations maintains one mailing address and electronic mailing address for each veterinary professional, regardless of the number of different professional licenses or registrations the veterinary professional may hold.
- C. All communication from the Board to a veterinary professional will be to the mailing address or the electronic mail address maintained with the Division of Professions and Occupations.
 - 1. The Board requires one of the following forms of documentation to change a veterinary professional's name or correct a social security number or individual taxpayer identification number:
 - a. Marriage license;
 - b. Divorce decree;
 - c. Court order;
 - d. Documentation from the Internal Revenue Service verifying the licensee's valid individual taxpayer identification number; or
 - e. A driver's license, social security card, or passport with a second form of identification may be acceptable at the discretion of the Director of Support Services.
- D. Any notification by the Board to a veterinary professional or applicant, required or permitted, under section 12-315-101 *et seq.*, C.R.S. or the State Administrative Procedure Act, found at section 24-4-101 *et seq.*, C.R.S., shall be served personally or by first class mail to the last address of record provided in writing to the Board. Service by mail or electronic mail shall be deemed sufficient and proper upon a veterinary professional or applicant.

1.12 VETERINARY MEDICAL ETHICS AND CODE OF CONDUCT

This Rule is promulgated pursuant to sections 12-20-204 and 12-315-106(5)(g), C.R.S.

- A. In order to safeguard the public health, safety, and welfare and to establish and maintain a high standard of ethics, professional conduct and integrity in the practice of veterinary medicine in this state, the Board hereby establishes the following code of ethical conduct applicable to all licensed veterinarians. Violations of this code may result in disciplinary action by the Board.

1. Primary Consideration

Veterinary professionals should place the needs of the patient first in their practice of veterinary medicine. This includes the needs to relieve disease, diminish suffering, minimize pain and fear, provide palliative care where appropriate and ensure patient care to the best of their abilities.

2. Care

Once a veterinarian has accepted a patient for care and established a veterinarian-client-patient relationship (VCPR), care must be provided as best as possible within the constraints of the agreed upon parameters of the VCPR. Veterinarians may decline a VCPR in individual cases, and are advised to do so in cases where they lack the appropriate expertise, environment, or experience to practice safely. In cases where the client limits payment, veterinarians are encouraged to clearly inform the client of the prognosis with and without treatment. Veterinary professionals should provide care only within their ability and competence.

3. Twenty-Four Hour Care

Veterinarians who advertise and offer twenty-four hour care to clients must ensure that such care is provided on a twenty-four hour basis. Staff must be available on site throughout the twenty-four hour period, and care given must be documented. If the veterinarian lacks the resources to treat such patients, then the client should be referred to a facility with the necessary resources. The veterinarian should also provide necessary supportive care prior to the transfer, and expedite transfer unless the referral is declined.

4. Emergency Care

In emergency situations, veterinary professionals should provide essential services to patients when necessary to relieve suffering or to save life. If the veterinarian is unable to treat an emergency patient, then the veterinarian should offer to refer the client to a facility with the necessary resources to treat the patient, provide necessary supportive care in the interim prior to transfer, and expedite the transfer unless the referral is declined. Veterinary professionals are encouraged to clearly inform the client of the prognosis with and without treatment.

5. Representations

Veterinary professionals should be honest, fair, and considerate in their dealings with clients and other colleagues. It is unethical for veterinarians to misrepresent their credentials, experience, expertise or academic degrees. Veterinary professionals must not engage in fraud, deceit or misrepresentation, nor become involved in situations where a conflict of interest may occur.

6. Influence on Judgment

The choice of treatments or patient care should consider the welfare of the patient, welfare and financial resources of the client, and the safety of the public.

7. VCPR

The veterinary-client-patient relationship (VCPR) is the basis for veterinary care. To establish such a relationship, the veterinarian should have sufficient knowledge of the patient to understand its current health and render at least a preliminary diagnosis. This would require that the veterinarian is personally acquainted with the patient either through office or home visits as defined in 12-315-104(19)(a). This section shall not be construed to allow the establishment of a veterinary-client-patient relationship solely by telephonic or other electronic means.

8. Prescription Drugs

Veterinarians may only prescribe medication when they have a VCPR with the patient. Under federal and state law, veterinarians may not sell, distribute, dispense or participate in or arrange for the sale of prescription medicines in any fashion except through a VCPR or in compliance with Rule 1.13. Veterinarians are charged with knowledge of the pharmacy practice act provisions that apply to their practice, as well as the laws and regulations of the federal food and drug administration. When a client requests a copy of a prescription for their animal under current treatment, the veterinarian must provide it to the client.

9. Medical Records

Medical records must be kept by veterinarians in all cases in which they have a VCPR. Records must also be kept in any other situation where a veterinarian has provided care or prescribed or dispensed drugs. Clients have a statutory right to copies of the medical records of their animals, and copies must be provided in a reasonable length of time.

10. Communication

The veterinary professional must communicate to the client the procedures, diagnoses, proposed treatments, estimated cost and

prognosis for the patient. Such communication should be sufficient to enable the client to understand clearly the problem and the choices that must be made. If other staff is involved in the communication process, it is the responsibility of the veterinary professional to ensure that such communications are appropriate.

11. Advertising

No veterinary professional may advertise Specialty Board Certification without certification by the American Veterinary Medical Association or the National Association of Veterinary Technicians in America in that specialty area. It is unethical to allow one's credentials to be used by any organization that engages in, or has members that engage in, the unauthorized practice of veterinary medicine. A veterinary professional should only advertise information about their practice that is accurate and services that are actually provided.

12. Aiding and Abetting

No veterinary professional may engage in acts that aid and abet the unlicensed practice of veterinary medicine. This includes situations where duties delegated to office staff include duties reserved for veterinarians. This also includes, but is not limited to, employment where non-veterinarians influence or engage in the practice of veterinary medicine.

13. Environment

All veterinary professionals must maintain a sanitary environment in which they care for patients. This includes, but is not limited to, sanitization, disinfection, disposal of water and any other activity required to address the cleanliness in which patients are treated. If veterinary professionals work in clinics they do not own, they are responsible for ensuring that their work is done in a clean environment and within the standards of care.

(Amended and Re-numbered November 3, 2011, Effective December 30, 2011)

1.13 RECORD KEEPING REQUIREMENTS

This Rule is promulgated pursuant to sections 12-20-204 and 12-315-119 3(b)(I), C.R.S.

A. Practice Types for Record Keeping

Records are required for practice types, including but not limited to, small animal, exotic animal, equine, shelter medicine, food animals, spay/neuter clinics, vaccination clinics and high volume/low-cost facilities.

B. Core Components of Required Records

1. Responsible professional: Name or initials of the veterinarian responsible for the animal.
2. Owner information: Name and available contact information of the animal's owner or other caretaker.
3. Patient identification: Name, age, species, breed color, and any additional identification or markings of animal.
4. Dates of interaction: Dates of consultation, examination, treatment and custody of the animal.
5. Medical information (if available): Medical history information, including vaccinations and any complications with vaccinations, anesthesia and/or surgeries.
6. Presentation: How the issue/complaint was presented.
7. Examination Findings: Physical assessment information.
8. Diagnostic Workup: All clinical laboratory reports, imaging records, or consultation.
9. Final Diagnosis: Differential diagnosis and final diagnosis if available.
10. Treatment Plan: Treatment and intended treatment plan including all medications and treatments recommended, prescribed and dispensed, including strength, quantity, and frequency.
11. Surgery and Anesthesia (if applicable): Surgical procedures completed, including name of surgeon, summary of procedure noting abnormalities/complications, anesthesia/sedative agents used, route of administration, strength, monitoring record including name of anesthetist.
12. Progress Notes (if applicable): Case progress notes including status, assessment, treatments, and, initials of the veterinarian, veterinary technician, or staff responsible for entries.
13. Consent Forms: Signed consent forms.
14. Communications: Documentation of all forms of communication including services declined.
15. Animal/Herd/Flock Identification: Species, breed type, herd or flock identification and number of animals seen.
16. Treatments: Number of animals treated and dates. Identify any anomalies with specific issues.

- C. Core Components for Required Records for Herds, Flocks, Other Groups of Animals and Vaccine Clinics
1. Responsible Professional: Name or initials of the veterinarian responsible for the animal.
 2. Owner Information: Name and available contact information of the animal's owner or other caretaker.
 3. Patient Identification: Name, age, species, breed, color, distinguishing markings, and/or appropriate identification of herd/flock/other groups of animals.
 4. Date and type of service.
 5. Medical information (if available): Medical history information pertinent to the vaccine clinic including vaccinations and any complications with vaccinations, anesthesia and/or surgeries.
 6. Examination Findings (if applicable): Physical assessment information.
 7. Consent Forms (if applicable): Signed consent forms.
 8. Communications (if applicable): Documentation of all forms of communication including services recommended.

1.14 TRANSRECTAL PROCEDURES, OVA TRANSPLANT, EMBRYO TRANSFER, UTERINE LAVAGES, AND REPRODUCTIVE PROCEDURES

This Rule is promulgated pursuant to sections 12-20-204, 12-315-106(5)(g), and 12-315-106(5)(c), C.R.S.

- A. Transrectal procedures including transrectal ultrasonography and transrectal palpation are the practice of veterinary medicine. Ova transplant, embryo transfer, oocyte collection, manipulation and transfer and embryo manipulation are the practice of veterinary medicine.
- B. Semen collection in any species as it relates to and includes semen evaluation for the purpose of diagnosing and/or treating infertility is the practice of veterinary medicine.
- C. Uterine lavage is the practice of veterinary medicine.

(Amended and Re-numbered November 3, 2011, Effective December 30, 2011)

1.15 WAIVER OF VETERINARIAN-CLIENT-PATIENT RELATIONSHIP FOR ADMINISTERING, DISTRIBUTING, DISPENSING, OR PRESCRIBING IN AN URGENT SITUATION ONLY

This Rule is promulgated pursuant to sections 12-20-204 and 12-315-106(5)(g), C.R.S.

- A. If a licensed veterinarian who has an established veterinarian-client-patient relationship (VCPR) with a patient prescribes a prescription drug that the licensed veterinarian does not have in stock and is not available at a local pharmacy, then in an urgent situation ONLY another licensed veterinarian who does not have a VCPR with that same patient may administer, distribute, or dispense a prescription drug to that patient based on the examining veterinarian's expertise and established VCPR with the patient as long as the following requirements are met:
1. The examining veterinarian with the VCPR must document the urgent situation and the immediate need for the prescription drug;
 2. The examining veterinarian with the VCPR must document his or her efforts to obtain the prescription drug from a local pharmacy, including documentation of contact with at least one pharmacy in the general proximity of the examination location that does not have the prescription drug immediately available;
 3. The examining veterinarian must provide a written prescription;
 4. The examining veterinarian must have direct communication with the dispensing veterinarian; and
 5. The licensed veterinarian who administers, distributes, or dispenses the prescription drug on behalf of the examining veterinarian must document the date the prescription is administered, distributed, or dispensed.
- B. An "urgent situation" refers to a failure to acquire the prescription drug immediately threatens the health or wellbeing of the patient.

(Adopted November 3, 2011, Effective December 30, 2011)

1.16 FINING SCHEDULE FOR VIOLATIONS OF THE VETERINARY PRACTICE ACT AND BOARD RULES

- A. Pursuant to section 12-315-112(6), C.R.S. any person violating any provision of the Veterinary Practice Act or Board Rules may be fined not less than \$100 nor more than \$1,000 for any such violation. The Board will impose fines including, but not limited to the following violations:
1. Substandard Record Keeping

- a. \$250 for the first violation
 - b. \$500 for the second violation
 - c. Up to \$1,000 for the third or subsequent violation
- 2. Failure to Provide Records
 - a. \$250 for the first violation
 - b. \$500 for the second violation
 - c. Up to \$1,000 for the third or subsequent violation
- 3. Failure to Provide a Written Prescription
 - a. \$250 for the first violation
 - b. \$500 for the second violation
 - c. Up to \$1,000 for the third or subsequent violation
- 4. Practicing on an Expired or Inactive License
 - a. 0-12 months: \$0
 - b. 1-2 years: \$500
 - c. 2 or more years: \$1,000
- 5. Failure to Appropriately Supervise Veterinary Student or Personnel
 - a. \$250 for the first violation
 - b. \$500 for the second violation
 - c. Up to \$1,000 for the third or subsequent violation
- 6. Failure to Designate a Licensed Veterinarian as Responsible
 - a. Up to \$1,000 for each violation
- 7. Failure to Keep Veterinary Premises Clean and Sanitary
 - a. Up to \$1,000 for each violation
- 8. False Advertising
 - a. Up to a \$1,000 for each violation

9. Administering, Distributing, Dispensing, and Prescribing Outside of a VCPR
 - a. Up to a \$1,000 for each violation
10. Failure to Respond to a Board Complaint
 - a. \$250 for the first violation
 - b. \$500 for the second violation
 - c. Up to \$1,000 for the third or subsequent violation
11. Violation of the Pharmacy Act
 - a. Up to a \$1,000 for each violation
12. Other Violations
 - a. Up to a \$1,000 for each violation

1.17 DECLARATORY ORDERS

This Rule is promulgated pursuant to sections 12-20-204, 12-315-106(5)(g), and 24-4-105(11), C.R.S.

- A. Any person may petition the Board for a declaratory order to terminate controversies or to remove uncertainties as to the applicability to the petitioner of any statutory provision or of any rule or order of the Board.
- B. The Board will determine, in its discretion and without notice to petitioner, whether to rule upon any such petition. If the Board determines that it will not rule upon such a petition, the Board shall promptly notify the petitioner of its action and state the reasons for such action.
- C. In determining whether to rule upon a petition filed pursuant to this rule, the Board will consider the following matters, among others:
 1. Whether a ruling on the petition will terminate a controversy or remove uncertainties as to the applicability to petitioner of any statutory provision or rule or order of the Board.
 2. Whether the petition involves any subject, question or issue which is the subject of a formal or informal matter or investigation currently pending before the Board or a court but not involving any petitioner.
 3. Whether the petition seeks a ruling on a moot or hypothetical questions or will result in an advisory ruling or opinion.

4. Whether the petitioner has some other adequate legal remedy, other than an action for declaratory relief pursuant to Rule 57, Colo. R. Civ. P., which will terminate the controversy or remove any uncertainty as to the applicability to the petitioner of the statute, rule or order in question.
- D. Any petition filed pursuant to this rule shall set forth the following:
1. The name and address of the petitioner and whether the petitioner is licensed pursuant to the provisions of section 12-315-101, *et seq.*, C.R.S.
 2. The statute, rule or order to which the petition relates.
 3. A concise statement of all of the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statute, rule or order in question applies or potentially applies to the petitioner.
- E. If the Board determines that it will rule on the petition, the following procedures apply:
1. The Board may rule upon the petition based solely upon the facts presented in the petition. In such a case:
 2. Any ruling of the Board will apply only to the extent of the facts presented in the petition and any amendment to the petition.
 3. The Board may order the petitioner to file a written brief, memorandum or statement of position.
 4. The Board may set the petition, upon due notice to petitioner, for a non-evidentiary hearing.
 5. The Board may dispose of the petition on the sole basis of the matters set forth in the petition.
 6. The Board may request the petitioner to submit additional facts, in writing. In such event, such additional fact will be considered as an amendment to the petition.
 7. The Board may take administrative notice of facts pursuant to the Administrative Procedure Act (section 24-4-105(8), C.R.S.) and may utilize its experience, technical competence and specialized knowledge in the disposition of the petition.
 8. If the Board rules upon the petition without a hearing, it shall promptly notify the petitioner of its decision.
 9. The Board may, in its discretion, set the petition for hearing, upon due notice to petitioner, for the purpose of obtaining additional facts or

information or to determine the truth of any facts set forth in the petition or to hear oral argument on the petition. The notice to the petitioner setting such hearing shall set forth, to the extent known, the factual or other matters into which the Board intends to inquire.

10. For the purpose of such a hearing, to the extent necessary, the petitioner shall have the burden of proving all of the facts stated in the petition, all of the facts necessary to show the nature of the controversy or uncertainty and the manner in which the statute, rule or order in question applies or potentially applies to the petitioner and any other facts the petitioner desires the Board to consider.
- F. The parties to any proceeding pursuant to this Rule shall be the Board and the petitioner. Any other person may seek leave of the Board to intervene in such a proceeding, and leave to intervene may be granted at the sole discretion of the Board. A petition to intervene shall set forth the same matters as required by section D of this Rule. Any reference to a "petitioner" in this Rule also refers to any person who has been granted leave to intervene by the Board.
 - G. Any declaratory order or other order disposing of a petition pursuant to this Rule shall constitute agency action subject to judicial review pursuant to section 24-4-106, C.R.S.

(Amended and Re-numbered November 3, 2011, Effective December 30, 2011)

1.18 REPORTING CONVICTIONS, JUDGMENTS, AND ADMINISTRATIVE PROCEEDINGS

This Rule is promulgated pursuant to sections 12-20-204, 12-315-106(5)(g), and 12-315-112(1)(n), (o), (p), and (q), C.R.S.

A licensee or registrant, as defined in section 12-20-102(10) and (12), C.R.S., means any veterinary professional who is licensed or registered by the Board. Each veterinary professional shall inform the Board in writing within thirty days of any of the following:

- A. Reporting Convictions
 1. A veterinary professional must report in writing within thirty days the following criminal convictions:
 - a. A conviction of a charge of cruelty to animals;
 - b. A conviction of a violation of the "Uniform Controlled Substances Act of 2013", Article 18 of Title 18, the federal "Controlled Substances Act", 21 U.S.C. sec. 801 *et seq.*, as amended, or the federal "Controlled Substances Import and Export Act", 21 U.S.C. sec. 951 *et seq.*, as amended;

- c. A conviction of a crime in this state or any other state, any territory, or any other country for an offense related to the conduct regulated by Article 315 of Title 12;
 - d. A conviction upon charges that involve the unlawful practice of veterinary medicine; or
 - e. A felony conviction.
 - 2. For purposes of this Rule, a “conviction” includes:
 - a. A guilty verdict;
 - b. A plea of guilty accepted by the court or the entry of a guilty plea;
 - c. A plea of nolo contendere (no contest) accepted by the court; or
 - d. The imposition of a deferred sentence accepted by the court.
 - 3. The written notice to the Board shall include the following information:
 - a. The court;
 - b. The jurisdiction;
 - c. The case name;
 - d. The case number; and
 - e. A description of the matter or copy of the indictment or charges.
- B. Reporting Judgments and Administrative Proceedings**
- 1. A veterinary professional must report in writing within thirty days any of the following:
 - a. A disciplinary action imposed upon the veterinary professional by another jurisdiction that would be a violation of section 12-315-112, C.R.S., including but not limited to, a citation, sanction, probation, civil penalty, or a denial, suspension, revocation, or modification of a license whether it is imposed by consent decree, order, or other decision, for any cause other than failure to pay a license fee by the due date or failure to meet continuing education requirements.
 - b. Any judgment, award, or settlement of a civil action or arbitration in which there was a final judgment or settlement against the veterinary professional for malpractice of veterinary medicine.
 - 2. The written notice to the Board shall include the following information:

- a. If the event is an action by a governmental agency, include: the name of the agency, its jurisdiction, the case name, court docket, proceeding or case number by which the event is designated, and a copy of the consent decree, order or decision;
 - b. If the event concerns a civil action or arbitration proceeding, include: the court or arbiter, the jurisdiction, the case name, the case number, court docket, a description of the matter or a copy of the complaint, and a copy of the verdict, the court or arbitration decision, or, if settled, the settlement agreement and court's order of dismissal.
3. Failure to comply with this Rule may constitute grounds for disciplinary action.

1.19 CONFIDENTIAL AGREEMENTS TO LIMIT PRACTICE FOR PHYSICAL ILLNESS, PHYSICAL CONDITION, OR BEHAVIORAL OR MENTAL HEALTH DISORDER

This Rule is promulgated pursuant to sections 12-20-204, 12-30-108, 12-315-124, 12-315-125, and 12-315-208, C.R.S.

- A. These requirements apply to a veterinarian, a veterinary technician, a veterinarian technician specialist, or a veterinary professional associate who holds an active license, registration or designation issued by the Board, including a veterinarian issued an academic license.
- B. No later than thirty days from the date a physical illness, physical condition, or behavioral or mental health disorder impacts a licensee's ability to practice with reasonable skill and safety, the licensee shall provide the Board, in writing, the following information:
 1. The diagnosis and a description of the illness, condition, or disorder;
 2. The date the illness, condition, or disorder was first diagnosed;
 3. The name of the current treatment provider and documentation from the current treatment provider confirming the diagnosis, date of onset, and treatment plan;
 4. A description of the licensee's or registrant's practice and any modifications, limitations or restrictions to that practice that have been made as a result of the illness, condition, or disorder;
 5. Whether the licensee or registrant has been evaluated by, or is currently receiving services from the Board's authorized Peer Health Assistance Program related to the illness, condition, or disorder, and, if so, the date of initial contact and whether services are ongoing.

- C. Compliance with this Rule is a prerequisite for eligibility to enter into a Confidential Agreement with the Board pursuant to sections 12-315-125 and 12-30-108, C.R.S. However, mere compliance with this Rule does not require the Board to negotiate regarding, or enter into, a Confidential Agreement. Rather, the Board will evaluate all facts and circumstances to determine if a Confidential Agreement is appropriate.
- D. If the Board discovers that a licensee has a physical illness, physical condition, or behavioral or mental health disorder that impacts the licensee's or registrant's ability to practice with reasonable skill and safety and the licensee has not notified the Board as required under these Rules of such illness, condition, or disorder, the licensee shall not be eligible for a Confidential Agreement and may be subject to disciplinary action for failure to notify under section 12-315-112, 12-315-207, C.R.S.

1.20 [Repealed eff. 01/30/2026]

Editor's Notes

History

Rules 1.00, 4.00 eff. 09/30/2007.
Rule 4.00 eff. 01/30/2008.
Entire rule eff. 12/30/2011.
Rule I.B eff. 08/30/2012.
Rule I.B emer. rule eff. 02/08/2013.
Rules I.A, 1.B, 1.E eff. 05/30/2013.
Rule I.A eff. 06/14/2013.
Rules I.B, II.A.17 eff. 09/30/2013.
Rule I eff. 08/14/2014.
Rules 1.2 A.8-18, 1.2 E.4, 1.2 G eff. 11/30/2019.
Rule 1.23 emer. rule eff. 05/01/2020; expired 08/29/2020.
Rule 1.24 emer. rule eff. 05/11/2020; expired 09/08/2020.
Rule 1.23 emer. rule eff. 08/30/2020; expired 12/28/2020.
Rule 1.24 emer. rule eff. 09/09/2020.
Entire rule eff. 10/15/2020.
Rule 1.10 B eff. 12/15/2020.
Rules 1.24, 1.25 emer. rules eff. 12/28/2020.
Rule 1.25 emer. rule eff. 01/11/2021.
Rules 1.4 E-F, 1.12 C eff. 04/14/2021.
Rules 1.24, 1.25 emer. rules eff. 04/27/2021.
Rule 1.25 emer. rule eff. 05/11/2021.
Rules 1.24, 1.25 emer. rules eff. 07/12/2021.
Rule 1.26 emer. rule eff. 11/01/2021.
Rules 1.24, 1.25 emer. rules eff. 11/02/2021.
Rules 1.17 C.1, 1.26 eff. 11/30/2021.
Rules 1.24, 1.25 emer. rules eff. 03/02/2022.
Rules 1.24, 1.25 emer. rules eff. 06/28/2022.
Rules 1.21, 1.22 emer. rules eff. 10/13/2022.
Rules 1.18, 1.19 emer. rules eff. 10/26/2022.
Rules 1.18, 1.19 emer. rules eff. 11/11/2022.
Rules 1.2-1.10, 1.12-1.22 eff. 12/15/2022.
Rules 1.18, 1.19 emer. rules eff. 01/09/2023; expired 05/09/2023.
Rule 1.11 eff. 04/14/2023.
Rules 1.21, 1.22 repealed, rule 1.20 renumbered as 1.18 eff. 11/30/2023.
Rules 1.8 C-D emer. rules eff. 02/13/2025.

Rules 1.8 C-D emer. rules eff. 06/12/2025.

Rules 1.8 C-D eff. 07/30/2025.

Entire rule eff. 10/15/2025.

Rule 1.20 repealed eff. 01/30/2026.

Rule 1.9 E emer. rule eff. 02/12/2026.

Rule 1.9 E.2 eff. 05/30/2026.

Annotations

Rules 1.22 B. and 1.22 C. (adopted 10/13/2022) were not extended by Senate Bill 23-102 and therefore expired 05/15/2023.